ORDINANCE NO. 571

AN ORDINANCE ESTABLISHING RESTRICTIONS FOR BURNING CERTAIN ITEMS IN THE CITY OF RECTOR, AND PENALTIES AND FOR OTHER PURPOSES

WHEREAS, in connection with the requests and review by the Fire Department and burning of waste in the City of Rector, and

WHEREAS, certain items create environmental hazards and certain materials shall not be burned, and

WHEREAS, burning of items that create such hazard shall be prohibited in the City of Rector.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, STATE OF ARKANSAS, AS FOLLOWS:

SECTION 1. Only approved materials (wood-based products that are not treated and yard debris) will be allowed to be burned in the city.

SECTION 2. Prohibited items shall include furniture items, garbage, metals, plastic, rubber, tires, shingles, treated lumber or petroleum-based products of any kind.

SECTION 3. The Fire Department, Police Department, or Code Enforcement may issue a citation to a person in violation of this Ordinance and shall be a misdemeanor and or revoke burning privileges. Fines for violation of this section shall be assessed no less than $300 and no more than $500, plus court costs and fees. Each violation shall constitute a separate violation.

SECTION 4. If the owner or occupant shall neglect or refuse to immediately extinguish the fire, the City officials shall be allowed to do whatever is necessary to extinguish the fires in violation and shall be awarded any expenses for clean-up.

SECTION. 5 This Ordinance shall not supersede or replace any existing state laws or county issued burn bans that may be in existence. All Ordinances and parts of Ordinances in conflict within the provisions of this Ordinance are hereby repealed.

PASSED AND APPROVED THIS 7 day of November, 2022.